

Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2011

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State of Bihar - Act

Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2011

BIHAR

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Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2011

Rule

BIHAR-ELECTRICITY-REGULATORY-COMMISSION-DELEGATION-OF-FINANCIAL-POWERS-REGULATIONS-2011 of 2011

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Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2011

Published vide Notification No. BERC-Est.-1/07 (Part-II)-732-04, dated 15.11.2011

Last Updated 5th February, 2020

No. BERC-Est.-1/07 (Part-II)-732-04 - In exercise of powers conferred by Section 181 (1) of Electricity Act, 2003 and all powers enabling in this behalf, and in supersession of the Regulation and Appendix A of the Regulation issued under notification No. 1 dated 8th July, 2005 published in the Bihar Gazette, Extraordinary on 27th July 2005, the Bihar Electricity Regulatory Commission hereby makes the following Regulations with regards to financial powers to the

various officers to carry out the function of the Commission.

1.

Short title and commencement.

- These regulations shall be called the Bihar Electricity Regulatory Commission (Delegation of Financial Powers) Regulations, 2011. They shall come into force on the date of their publication in the official gazette.

2.

Definitions.

- In these regulations the words used shall have the following meanings, -

(i)

State Government shall mean Government of Bihar.

(ii)

Commission shall mean Bihar Electricity Regulatory Commission.

(iii)

Chairman shall mean Chairman of Bihar Electricity Regulatory Commission.

(iv)

Head of department shall mean Chairman of the Commission or any other officer to whom such powers may be delegated by the chairman.

(v)

Act shall mean the Electricity Act, 2003 and shall include any statutory amendment,

(vi)

Secretary shall mean Secretary of Bihar Electricity Regulatory Commission or any other officer of the Commission authorized by the Chairman to discharge the responsibility of the Secretary in his/her absence.

(vii)

Head of the office shall mean Secretary of the Commission or any other officer of the Commission to whom such financial powers may be delegated by the Chairman.

(viii)

Words and expressions used and not defined in these regulations but defined in the Act shall bear the same meaning as in the Act.

3.

Financial Powers.

- (i) All financial expenditures relating to the affairs of the Commission shall be made in accordance with the delegation of financial powers mentioned in appendix A to these regulations.

(ii)

The powers delegated shall be used with due care maintaining financial propriety and economy.

(iii)

Total value of work should not be split up to avoid sanction of higher authority.

4.

Power to amend.

- The Commission shall have powers to make suitable amendments to these regulations from time to time in accordance with requirements of the functioning of the Commission.

5.

Repeal and saving.

- The Bihar Electricity Regulatory Commission (Delegation of Financial Powers) regulation, 2005 and Annexure A of the regulations issued under notification No.-1 dated 8th July, 2005 and published on 27 July, 2005 in the Bihar Gazette, Extra Ordinary are hereby repealed.

(ii)

Notwithstanding such repeal, anything done or purported to have been done or any action taken or purported to have been taken under the repealed regulation before such repeal, shall be deemed to have been done or purported to have been done or taken or purported to have been taken under these regulations.

6.

Removal of difficulties.

- If any difficulty arises in giving effect to any of the provisions of these regulations, the Commission may, for reasons to be recorded in writing, pass any order as it may consider necessary not inconsistent with the provisions of the Act for removing the difficulties.

7.

Any item of expenditure not appearing in Appendix A (Delegation of Financial Powers) shall be dealt with as per State Govt. guidelines issued from time to time.

Bihar Electricity Regulatory Commission

Delegation of Financial Powers Regulation, 2011.

Appendix-A

SL No.

Item of Expenditure

Monetary limit upto which expenditure can be incurred.

Powers of the Chairman

Powers of the head of the department

Powers of the head of the office

Remarks

1

2

3

4

5

6

1.

Unspecified items of contingent Expenditure:

(a)

Recurring (not covered under any other item in these regulations).

Full power

Rs. 25,000 per occasion

Rs.10,000 per occasion

Subject to availability of fund in the Budget

(b)

Non-recurring (not covered under any other item in these regulations)

Full Powers

Rs. 50,000 per occasion

Rs.25,000 per occasion

Subject to availability of fund in the Budget

and observance of the procedure prescribed by the State Govt. for procurement of goods in Bihar Finance (Amendment) Rules, 2005

2.

Motor vehicle:

(a)

Purchase of vehicle

Full powers

Nil

Nil

Subject to availability of fund and observance

of process prescribed by the State Govt. for procurement of goods

as laid down in Bihar Finance (Amendment) Rules, 2005

(b)

Maintenance, Repair and replacement of parts

Full Powers

Rs. 30,000 p.a. per vehicle

Rs. 16000 p.a per vehicle

Subject to observance of conditions prescribed

by the State Govt. regarding purchase of Battery, Tyre & Tube

and other such conditions prescribed by Govt. of Bihar, Finance

Deptt. letter no. M4-18/2006- 4082fo0(2) dated-

24.06.2006.

(c)

Registration and insurance of vehicle

Full Powers

Full Powers

Full Powers

(d)

POL

Full Power

Full Power within sanctioned limit per vehicle

per month

Full powers within sanctioned limit of POL per

vehicle per month

State Govt. Finance Department order dated

09.10.2007 extending limit of POL per vehicle per month shall

apply in case of Chairman and Members of the Commission i.e, 250

liters per vehicle per month for official purposes and for

commuting from residence to office and back. For other officers

it shall be 110 liters per month per vehicle for official

purposes and for commuting residence to office and back.

(e)

Condemnation of vehicles and their disposal

through auction

Full Powers

Nil

Nil

Subject to fulfillment of norms prescribed by

the State Govt. for disposal of goods as laid down in Bihar

Finance (Amendment) Rules, 2005, read with Govt. of Bihar,

Finance Deptt. letter no. 04.11.2008-4665/fo0(2), dated

09.06.2008

3.

Hiring of conveyance

Full Power

20,000 per occasion

10,000 per occasion

4.

Office Equipment Electric Appliances and

computers:

(a)

Purchase of all office equipment including

electric and electronic appliances, intercom, calculators

photocopiers. machine, franking machine, filing and indexing system, computer accessories, projectors, printers etc.

Full Powers

50,000 per occasion

20,000 per occasion

Subject to observance of guiding principle as laid down by the State Govt. for procurement of goods in Bihar Finance (Amendment) Rules 2005.

(b)

Purchase of Computers including personal computers, printers and computer furniture

Full Power

Rs. 50,000 per occasion

Nil

Do

(c)

Repair of computers of all kinds and maintenance and repair of other equipments

Full Power

Rs. 15,000 per occasion

Rs. 10,000 per occasion

(d)

Refill of Cartridge of Printer/Photocopier/Fax machine.

Full Power

Full Power

Full Power

5.

Furniture and fixtures:

(a)

Setting up of the office

Full Power

Rs. 50,000 on each occasion

Rs.10,000 on each occasion

(b)

Purchase of furniture

Full Power

Rs. 50,000 on each occasion

Rs. 15,000 on each occasion

Subject to observance of instructions of the State Govt. for procurement of goods as laid down in Bihar Finance (Amendment) Rules, 2005.

(c)

Purchase of Air conditioner and Room cooler

Full Power

Rs. 35,000 on each occasion

Rs. 10,000 on each occasion

-Do-

(d)

Repair of furniture and fixtures

Full Power

Rs. 20,000 annual

Rs.10,000 annual

6.

Purchase of stationery:

(a) Purchase of stationery stores

Full Power

Rs. 25,000 per month

Rs.10,000 per month

Subject to the condition as contained in Govt.

of Bihar Finance Department circular No. 195, dated 08.01.2003.

Any amendment subsequently made in the said provision by the State Govt. shall automatically apply.

(b) Purchase of rubber stamps and office seals

Full Power

Full Power

Full Power

7.

Printing and binding, Publication and Publicity

(a) Printing and Binding

Full Power

Rs. 75,000 on each occasion

Rs.25,000 on each occasion

(b) Purchase of publications including purchase

of Govt. publication, non- Govt. publication, Books, periodicals, newspapers.

Full Power

Rs.1,00,000 annual

Rs.25,000 annual

(c) Publicity charges

Full power

Rs. 25000 on each occasion

Rs.15,000 on each occasion

Advertisement shall be taken out at DAVP rate only.

8.

Telephone, Mobile and Internet charges:

(a) Sanction of residential telephone with

separate telephone lines or to allow the existing residential telephone installed in the name of the officer or his/her spouse as official with internet connectivity and facility of mobile phone in case of officers appointed against post equivalent to the scale of Dy Secretary in Govt. of India (15,000-39,100 with Grade pay 7600) and above.

Full Power

Nil

Nil

Subject to ceiling of amount

payable/reimbursable for land line, internet connectivity and mobile charge together prescribed by Govt. of India for different rank of officers as laid down in Govt. of India, Ministry of Finance, Department of Expenditure OM no. 7 (14)/ 2006-C&V/2006

dt. 14.11.2006. Payment of Bill within the prescribed limit will be made by Head of the Office.

(b) Sanction of residential telephone/internet connection/mobile in case of officers below the grade of Dy. Secretary in Govt. of India (15000-39100 with grade pay of Rs. 7600)

Full Power

Nil

Nil

The ceiling amount shall be Rs. 800 p.m (land line + internet + mobile). Once it is approved by the Chairman payment of Bills will be made by Head of the Office.

9.

Hiring of Building:

(a) Hiring of building for office accommodation

Full Power

Nil

Nil

Once decision is taken for hiring of building for office accommodation and monthly rent is decided by the Chairman, rent shall be paid by the head of the Office.

(b) For residential and other purposes

Full Power

Nil

Nil

Do

10.

Petty works and repair:

(a) Execution of petty works and special repairs to office building (hired) including sanitary fittings, water supply and electric installations and repairs to such installations.

Full Power

Rs. 25,000 on each occasion

Rs.10,000 on each occasion

Subject to availability of fund. In case of hired building, if special repair is undertaken the expenditure incurred shall be adjusted against rent payable.

(b) Execution of petty works, special repairs and day to day maintenance of own Building

Full Power

Rs. 50,000 on each occasion

Rs.25,000 on each occasion

Subject to availability of fund in the Bridget

11.

Legal charges:

(a) Hiring of legal consultants including appointment of counsel, arbitrator

Full Power

Nil

Nil

Once panel of advocates/counsels is approved and their remuneration payable is sanctioned by the Chairman, payment against their bill after proper verification shall be made by The Head of the Office.

(b) Reimbursement of legal expenses incurred by Commission employees relating to discharge of their official duties

Full Power

Full Power

Full Power

12.

Payment of consultancy charges

Full Power

Nil

Nil

Once sanction is granted and amount payable is decided at the level of Chairman, payment shall be made by the Head of the Office.

13.

Miscellaneous charges:

(a) Electric, Gas and water Charges

Full Power

Full Power

Full Power

(b) Municipal rates and Taxes

Full Power

Full Power

Full Power

(c) Freight and demurrage/wharfage charge

Full Power

Full Power

Full Power

14.

Staff paid from contingencies:

Full Power

Nil

Nil

Once amount is approved by the Chairman, payment shall be made by the Head of the Office.

15.

Sanction of Honorarium:

Full Power

Nil

Nil

16.

Postal and courier charges:

Full Power

Full Power

Full Power

17.

Supply of liveries and washing allowance

Full Power

Full Power

Full Power

18.

Sanction of Tour

(a) In case of group 'A' officers

Full Power

Nil

Nil

(b) In cases of other officers and staff of the Commission

Full Power

Full Power

Full Power

(c) Sanction of advance of TA if tour is sanctioned as at (a) & (b) above up to the limit and rate as prescribed by the State Govt.

Full Power

Full Power

Full Power

19.

Drawal of amount from Bank to replenish cash chest to meet day to day petty contingent expenses.

Full Power

Up to 75,000 including unspent balance

Up to 50,000 including unspent balance

20.

(a) Expenditure on refreshment for official meeting

Full Powers

Rs. 50 per head with a ceiling of Rs. 5,000 per occasion

Rs. 50 per head with a ceiling of Rs. 25,00 per occasion

(b) working lunch during the meetings/conferences/ seminar/work shops

Full Power

Rs 150 per head with a ceiling of Rs. 10,000 per occasion

Rs. 150 per head with a ceiling of Rs. 5,000 per occasion

(c) Working lunch on holidays to officers & staff

Full Power

Rs. 100 per head with a ceiling of Rs. 5,000 per occasion

Rs. 100 per head with a ceiling of Rs. 500

21.

Security and sanitation service:

(a) Engagement of security and sanitation services

Full Power

Nil

Nil

Once engagement of services is approved by the Chairman, payment will be made by Head of Office.

(b) Extension of contract of Security and sanitation services

Full Power

Nil

Nil

-Do-

22.

Reimbursement of medical Expenses

Full Powers including powers to grant relaxation of provisions in deserving cases

Full Power as per Bihar Electricity Regulatory

Commission (Terms and conditions of services of Chairperson and Members) Rules, 2003 in case of Chairperson and Members of the Commission and in case of other officers and staff as per Bihar Govt. Medical Rules

Full Power as per Bihar Electricity Regulatory

Commission (Terms and conditions of services of Chairperson and Members) Rules, 2003 in case of Chairperson and Members of the Commission and in case of other officers and staff as per Bihar Govt. Medical Rules

23.

Write-off irrecoverable losses of stores public money due to the theft fraud, negligence depreciation in the value of stores

Full Power

Nil

Nil

24.

Disposal of obsolete, surplus or unserviceable stores

Full Power

Up to Rs. 50,000

Nil

Subject to obtaining report of condemnation of the article by constituting suitable committee and to follow the provisions of disposal of goods as laid down in Bihar Finance (Amendment) Rules, 2005

25.

Re appropriation of fund

Full Power

Nil

Nil

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